

IMO III 11

Meeting summary

8 August 2025



The 11th session of the IMO's Sub-Committee on Implementation of IMO Instruments (III 11) was held 21-25 July 2025 in the IMO headquarters in London, supplemented by hybrid (online) participation.

LISCR participated in the following groups in addition to the plenary.

ID	Subject
WG 1	Working group on Analysis of Marine Safety Investigation Reports
WG 2	Working group on Measures to Harmonize Port State Control Activities and Procedures Worldwide, and Validated Model Training Courses
WG 3	Working group on Survey Guidelines under the HSSC, the Non-exhaustive List of Obligations, and the Guidance on Remote Survey, Audit and Verification

Statements

III 11 was informed that on 20 July 2025, a fire occurred on board the Indonesia-flagged Barcelona VA while navigating off North Sulawesi, resulting in three fatalities and two missing persons. A coordinated search and rescue operation by Indonesian authorities accounted for 575 survivors, and no environmental damage was reported.

III 11 noted serious concerns over escalating maritime threats in the Red Sea, particularly Houthi attacks on commercial ships. One such incident involved the Liberia-flagged Eternity C, which was struck by projectiles on 7 July 2025 and sank off the coast of Yemen. Of the 25 persons on board, five remain missing.

Finally, III 11 commended the IMO Secretary-General's continued engagement with relevant parties and his efforts to highlight seafarer safety amidst ongoing threats.

Decisions of other imo bodies

Matters raised related to fraudulent registration and fraudulent registries

III 11 examined concerns about fraudulent registration and fraudulent registries following MSC 110's instructions. Past analyses of Consolidated Audit Summary Reports revealed frequent shortcomings, which pointed to gaps in national legislation, administrative instructions, or guidance affecting flag State responsibilities. The need for technical assistance in these areas had been noted and referred for further support.

In response, III 11 recommended that the Technical Cooperation Committee incorporate targeted technical assistance for strengthening flag State responsibilities into the 2026 to 2027 technical cooperation programme. III 11 also requested that future analyses of audit reports continue to address issues related to fraudulent registration as outlined in the LEG 112 request.

Reception facility

Annual enforcement reports on port reception facilities for 2023 and 2024

III 11 reviewed the summary of 29 reports on alleged inadequacies of port reception facilities (PRFs) submitted in 2024 by six MARPOL Parties, along with a comparison to the 2023 annual enforcement data. III 11 noted the continuing importance of monitoring PRF availability to support MARPOL compliance, particularly in Special Areas.

In response, III 11 urged all Parties to MARPOL to submit their reports through the port reception facilities module in the Global Integrated Shipping Information System (GISIS) to maintain a complete and accurate dataset. It also requested the Secretariat to continue issuing annual enforcement reports on PRFs for consideration at future sessions.

Casualty analysis

Lessons learned from marine casualty case studies

III 11 prepared 36 lessons learned and finalize them for release on the IMO Public website.

(<https://www.imo.org/en/OurWork/MSAS/Pages/Casualties.aspx>).

Consolidated version of the existing Casualty Analysis Process

III 11 approved a draft MSC circular containing a consolidated version of the Casualty Analysis Process, reflecting recent updates to analysis procedures, quality assessment criteria, and the identification and forwarding of safety issues, as well as a new approach to support data-driven decision-making at the IMO. Key changes include updated terminology aligned with the Casualty Investigation Code, reordering of procedural steps for clarity, removal of the abbreviation “CACG” for casualty analysis correspondence group to avoid confusion, and minor editorial corrections. The draft circular will be submitted to MSC 111 for consideration and approval.

Parametric rolling of ships

III 11 approved a set of lessons learned on improving the assessment and mitigation of risks associated with parametric rolling, noting that such incidents can occur even in moderate sea conditions, with some tests indicating occurrences at wave heights as low as 2.6 m. III 11 highlighted seven relevant cases and recommended referring them to HTW for consideration in the ongoing review of the STCW Convention and Code. It also identified the need to enhance the GISIS Marine Casualty Investigation (MCI) module and review the existing taxonomy to better capture such incidents. III 11 agreed to forward the relevant information to the HTW, CCC, and SDC Sub-Committees for consideration under their respective ongoing workstreams.

Port State Control (PSC)

Analysis of PSC activities, practices and statistics

III 11 noted that total PSC inspections increased from 81,361 in 2022 to 90,381 in 2024, while the detention rate declined from 3.16% in 2023 to 3.00% in 2024. A notable rise in training and technical cooperation activities was observed in 2024. III 11 also took note of substantial input from the United States and 10 regional PSC Memoranda of Understanding (MoUs), as provided in a range of submission documents detailing recent activities, inspection statistics, and outcomes of concentrated inspection campaigns. III 11 expressed appreciation for these contributions, reiterated its invitation for all PSC regimes to continue submitting concise annual reports in the established format, and requested the Secretariat to maintain its analysis of inspection and deficiency data.

Performance of flag Administrations and recognized organizations

III 11 reviewed information on the performance of flag Administrations and recognized organizations (ROs), ROs. A submission identified eight flag Administrations repeatedly underperforming across multiple PSC regions between 2022 and 2024 — with four appearing in all three regions and four in two regions. III 11 also considered a document, which provided detention trends before and after the pandemic, a list of under-performing ships in 2024, and signs of deteriorating ship maintenance and condition. III 11 invited Member States and international organizations to take appropriate action in response and encouraged PSC regimes to continue providing performance data to support informed oversight of ROs.

Evolution of PSC module in GISIS

III 11 considered the proposed evolution of the existing GISIS Port State Control (PSC) module into a more robust, responsive, and user-centric overarching database with web service, intended to enhance implementation of mandatory IMO instruments and support global PSC harmonization. The proposal received broad support, with delegations recognising its strategic benefits, including addressing cross-regional challenges like fraudulent registries and the shadow fleet. Delegations stressed the need for a phased, inclusive, and transparent approach that respects regional differences, ensures data compatibility and cybersecurity, and includes capacity-building support for developing countries. The Secretary-General confirmed the initiative's alignment with long-standing PSC harmonization goals and noted that the proposal would be reviewed by the Committees and Council. III 11 agreed on the need for the project, requested the Secretariat to prepare a project document with cost estimates, and decided to report progress to the Maritime Safety Committee (MSC), Marine Environment Protection Committee (MEPC), and future sessions of the III Sub-Committee.

Financial security of seafarers in cases of abandonment

III 11 was informed that the 112th session of the Legal Committee (LEG 112) had invited the III Sub-Committee to provide advice on including information on financial security—such as its validity period and the contact details of providers—in the PSC Ship Inspection Report, and on the potential conduct of a concentrated inspection campaign (CIC) related to the 2014 amendments to the Maritime Labour Convention, 2006 (MLC, 2006). Recalling that III 7 had earlier agreed to incorporate this information into PSC inspection reports, as now reflected in resolution A.1185(33), III 11 noted that eight of the nine regional PSC regimes had already conducted a CIC on crew wages and seafarer employment agreements from

1 September to 30 November 2024, which included relevant financial security provisions. III 11 invited the Legal Committee to take note of these developments and consider them in its future work on financial security under the MLC, 2006.

PSC Procedure

III 11 finalized the amendments to the Procedures for Port State Control, 2023, which will be submitted directly to the thirty-fourth session of the IMO Assembly (A 34) for adoption. Key changes include:

- Inclusion of guidelines on security measures, including:
 - A clear distinction between Port State Control Officers (PSCOs) and Duly Authorized Officers (DAOs) who have special authority to access security-related information;
 - Inclusion of ISPS Code Part B, in addition to Part A, for reference only;
 - A list of instruments related to security matters; and
- Updating the list of instruments relevant to port State control procedures, taking into account new requirements adopted by MEPC 81, MSC 108, MEPC 82, and MSC 109.

Review the PSC guidelines in relation to the ISM Code

III 11 considered Recommendation 2 from the ISM Code effectiveness study and discussed two main proposals:

- Improving consistency in the identification and coding of ISM-related deficiencies across PSC regimes; and
- Developing objective criteria to assess manning levels under the ISM Code.

On the first point, while III 11 acknowledged inconsistencies, it concluded these were due not to the Procedures for PSC themselves but to variations in the application the IMO's PSC Procedure and differing practices among PSCOs and regional PSC regimes. III 11 found no justification for revising the Procedures at this stage, instead suggesting that regional regimes consider internal reviews and enhanced training to improve consistency.

Regarding the second proposal, III 11 concluded that assessing the adequacy of manning levels lies within the remit of flag States, not PSC authorities. The ISM Code is based on risk assessment and lacks objective criteria for PSCOs to determine manning adequacy beyond verifying compliance with minimum safe manning documents issued by flag States. Any regulatory gaps or deficiencies in guidance should be addressed through amendments to SOLAS 1974 or the development of further guidance for flag States, not through PSC procedures.

Means of escape from spaces below the bulkhead deck and related implementation matters

III 11 considered the issue of means of escape from spaces below the bulkhead deck, following a request from SDC 11 related to differing interpretations of SOLAS regulations II-2/9 and 13 and the potential for conflict between flag State-approved arrangements and PSC inspections. III 11 was informed that MSC 110 had addressed this by approving a new output to clarify relevant SOLAS provisions and by issuing MSC.1/Circ.1689, which invites PSC authorities to adopt a pragmatic approach during inspections. Two documents were submitted: one emphasizing the importance of respecting flag State interpretations, and the other raising concerns about improper conduct by flag States and recognized organizations (ROs).

During the discussion, delegations stressed the importance of adhering to paragraphs 1.2.5 and 1.2.6 of the Procedures for PSC, which state that port State control officers should, in principle, accept flag State-approved arrangements where

convention provisions are not specific, and recognize valid exemptions or alternatives. Many delegations affirmed that flag States have the right to interpret mandatory provisions of IMO instruments, provided these interpretations are based on sound technical justification and are documented in a timely and transparent manner. At the same time, several delegations underscored that port States must retain the ability to intervene where exemptions or alternative arrangements appear to compromise safety or environmental protection, noting the importance of maintaining trust between flag and port States.

III 11 concluded that no further guidance was needed at this time but acknowledged the complexity of the issue. It reminded flag States and ROs to comply with convention requirements when issuing certificates, and port States to respect the established Procedures for PSC. III 11 noted MSC 110's call for a pragmatic inspection approach and agreed that the matter would be further clarified through the work of SDC 12.

Improper endorsement of Certificates of Competency

III 11 considered a document that raised concerns about a growing trend of improper endorsements of Certificates of Competency (CoCs). In the discussion, delegations agreed that endorsements should only be issued under formal undertakings between flag States and CoC-issuing States, and that unilateral endorsements undermine certification integrity and maritime safety. III 11 emphasized the need for harmonized practices, adherence to STCW regulation I/10, updated GISIS records, and the use of electronic verification systems to prevent fraud. III 11 urged Member States to comply with MSC.1/Circ.1450 on *Guidance on arrangements between Parties to allow for recognition of certificates under regulation I/10 of the STCW Convention*, and encouraged port States to inspect and rectify improper

PSC inspections in relation to MLC 2006

III 11 highlighted the need for further training on provisions regarding seafarer wages and Seafarer's Employment Agreements of MLC 2006 to enhance consistency during PSC activities, given the nature of importance and complexity of the matter.

Validated model training courses

III 11 validated the revised IMO Model Course 3.09 on port State control, following comprehensive consideration during the session. The course, last updated in 2010, underwent a full review including ILO-related content, and delegations supported its finalization while expressing appreciation to those involved in the development and review.

Harmonized System of Survey and Certification (HSSC) Guidelines

Amendments to the Survey Guidelines under the Harmonized System of Survey and Certification (HSSC)

The IMO regularly updates its survey checklist. While this list is not mandatory under IMO instruments, it is mandatory under EU Regulation 391/2009 for all EU-recognized organizations (ROs). III 11 approved the latest amendments to the *Survey Guidelines under the HSSC* and, as authorized, submitted them directly to the thirty-fourth session of the IMO Assembly (A 34) for adoption.

The amendments include:

- Survey items that entered into force (entering into force) between 1 January and 31 December 2025, inclusive;
- Removal of survey requirements related to non-mandatory instruments;
- Deletion of footnotes that repeat content already cited in the mandatory requirements;
- Inclusion of survey requirements related to the International Code of Safety for Ships Carrying Industrial Personnel (IP Code); and
- Deletion of provisions related to the Anti Fouling System (AFS) Certificate, as the AFS Convention provides for certification but does not require any surveys beyond the initial issuance.

Survey items associated with the Hong Kong Ship Recycling Convention

III 11 concluded that survey guidelines for the Hong Kong Convention should be developed, based on resolution MEPC.222(64), and incorporated into the HSSC Survey Guidelines. While III 11 agreed on the need to update the guidelines, no draft text was available for finalization at this session. As a result, the matter was postponed for further discussion at the next session.

Guidance for remote survey, ISM audit and ISPS verification

The IMO's 33rd Assembly adopted A.1186(33) on *Survey guidelines under the Harmonized System of Survey and Certification (HSSC), 2023* and A.1188(33) on *2023 Guidelines on implementation of the International Safety Management (ISM) Code by Administrations*, which address remote survey/audit respectively. Key discussions at III 11 are explained as given below.

Eligibility for remote verification under ISPS Code

III 11 reviewed the draft guidance on eligibility for remote verification under the ISPS Code and agreed that, due to the highly sensitive nature of security-related information, such verification should be limited to extraordinary circumstances and apply only to interim, intermediate, and additional shipboard verifications.

It also confirmed that existing paragraphs 2.4 to 2.6 adequately address concerns regarding the need for secure tools during remote audits, and dismissed the idea of producing a specific platform for the ISPS remote verification. The table in Appendix 1, intended as an indicative reference for Administrations to assess which elements may be examined remotely, was endorsed without change. To ensure consistency, III 11 further agreed to replace the term "ship staff" with "shipboard personnel" and to delete the word "State" in all references to "flag State Administration" throughout Part B-III.

Scope of verifications carried out to issue interim certification under the ISM Code

III 11 considered the scope of audits for issuing interim Safety Management Certificates (SMCs) and Documents of Compliance (DOCs) under the ISM Code and agreed that interim audits should not be fully replaced by remote audits, reaffirming the position previously endorsed by III 10. It also identified an ambiguity between section 4.8 of the 2023 Guidelines on the implementation of the ISM Code (resolution A.1188(33)) and the draft guidance, and agreed that, to ensure alignment, the forthcoming MSC-MEPC circular should be taken into account during the comprehensive revision of the ISM implementation guidelines, which is scheduled under the III Sub-Committee's 2026–2027 biennial agenda.

Method for developing and assigning a coding system to update the Survey Guidelines under the HSSC

Following the discussion, III 11 agreed that the preferred approach is to add a new column directly into the Survey Guidelines to indicate remote survey eligibility, and instructed the CG to further develop this for consideration by III 12.

Final draft

Subsequently, III 11 prepared the draft MSC-MEPC Circular on Guidance on Assessments and Applications of Remote Surveys, ISM Code Audits and ISPS Code Verifications.

Unified interpretation

Unified interpretation of "completion date of the survey" in MSC-MEPC.5/Circ.3

A submission proposed a revision to MSC-MEPC.5/Circ.3 to clarify the unified interpretation of the date of completion of the survey and verification on which statutory certificates are based. The revised interpretation confirms that this date refers to the last initial or renewal survey and verification visit during which all required items have been examined, regardless of whether they were found satisfactory or had minor deficiencies or non-conformities. This clarification aligns with current practice, reinforces that only initial and renewal surveys cover all statutory items, and promotes greater harmonization in survey and certification procedures.

Plastic letters

III 11 reviewed its mandate under the Action Plan to Address Marine Plastic Litter from Ships and noted that no new proposals had been submitted since 2020. It recalled MEPC 83's adoption of the 2025 Action Plan (resolution MEPC.404(83)), which retained the III Sub-Committee's scope of work under actions 6 and 8. After reviewing previous discussions and outcomes, including the inclusion of MARPOL Annex V-related deficiencies in PSC risk profiles, III 11 concluded that both actions had been satisfactorily addressed and invited MEPC 84 to note that work under this output is considered completed.

Further information

For further information, please contact: imo@liscr.com

Annex

Provisional list of draft resolutions, circulars and other output

- Draft text of lessons learned from marine casualties (web posting and III circular)
- Draft MSC circular on the consolidated version of the existing Casualty Analysis Process
- III.3 circular on the observations on the quality of marine safety investigation reports
- Draft Assembly resolution on Procedures for PSC, 2025
- Devised Model Course 3.09 on port State control.
- Draft amendments to the Survey Guidelines under the Harmonized System of Survey and Certification (HSSC), 2023 (resolution A.1186(33))
- Draft amendments to the 2023 Non-exhaustive list of obligations under instruments relevant to the IMO instrument implementation Code (resolution A.1187(33))
- Draft MSC-MEPC Circular on Guidance on Assessments and Applications of Remote Surveys, ISM Code Audits and ISPS Code Verifications